



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 41ST REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD VIA VIRTUAL REMOTE SESSION (ONLINE PLATFORM) IN DAET, CAMARINES NORTE ON THE 8TH DAY OF NOVEMBER, 2021 AT 9:08 A.M.

PRESENT:

HON. ROSA MIA L. KING

Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT

HON. TOMASITO SANTIAGO C. TURINGAN

HON. APOLONIO B. PANONG

HON. FELIX C. ABAÑO

HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA

HON. NESTOR F. DALIDA

HON. PEDRO S. MUSA-LNB

HON. JUDY ROSE T. GALLARDO-SKMF

ABSENT:

NONE

Resolution No. 348-2021

RESOLUTION ADOPTING AN ORDINANCE AUTHORIZING THE RECLASSIFICATION FROM AGRICULTURAL TO RESIDENTIAL USE OF THE MORE OR LESS ONE HUNDRED THOUSAND FOUR HUNDRED NINETY-FOUR (100,494) SQUARE METERS LOT UNDER OCT NO. P-11854, P-11855, and P-1856 REGISTERED IN THE NAME OF SUZETTE K. APUYA, RONNIE O. KHO, AND CINDY K. ILAGAN, RESPECTIVELY LOCATED IN BARANGAY BIBIRAO, DAET, CAMARINES NORTE AND FAVORABLY ENDORSING THE SAME TO THE DEPARTMENT OF HUMAN SETTLEMENT AND URBAN DEVELOPMENT (DHSUD), REGIONAL OFFICE NO. 5 THE RESIDENTIAL SUBDIVISION PROJECT TO BE KNOWN AS WESTVILLE SUBDIVISION OF TIERRA ORIENTE DEVELOPMENT CORPORATION

WHEREAS, pursuant to Section 20 of the Local Government Code of 1991, the municipality through an ordinance passed by the sanggunian after conducting public hearings for the purpose, authorize the reclassification of land within its territorial jurisdiction;

WHEREAS, the Sangguniang Bayan of Daet received a letter from the General Manager of Family Merchants Projects Development Corporation (FMDC) Mr. Wilson P. Kho requesting for reclassification of lot in Barangay Bibirao from agricultural to residential use and endorsing the same to DHSUD the residential subdivision project;

WHEREAS, the proposed residential subdivision project to be known as Westville Subdivision of Tierra Oriente Development Corporation will be located at Barangay Bibirao, Daet, Camarines Norte under OCT No. P-11854, P-11855, and P-1856;

WHEREAS, under the proposed Comprehensive Land Use Plan of Daet the subject lot falls within the General Residential Zone, and since CLUP of Daet is for updating, an ordinance reclassifying the lot is needed so as not to impede the project;

WHEREAS, a public hearing was called and no objection was raised to the proposed reclassification and project;

WHEREAS, submitted to this office are the following documents:

- 1) Certification from barangay interposing no objection to the reclassification;
- 2) Certification from MPDO stating its greater economic value for residential purposes and its classification based on the approved CLUP (1980) and the proposed CLUP;
- 3) DAR certification that the land is not covered by the Comprehensive Agrarian Reform Program;
- 4) PCA certification of non-coconut productivity;
- 5) Certificate from the Department of Agriculture that the land ceases to be economically feasible and sound for agricultural purposes.

NOW THEREFORE, after due deliberation, on motion of Councilor Rossano C. Valencia, seconded by Councilors Felix C. Abañon, Ma. Eliza H. Llovit, William Carlo R. Avila, Apolonio B. Panong and Nestor F. Dalida;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 437-2021

AN ORDINANCE AUTHORIZING THE RECLASSIFICATION FROM AGRICULTURAL TO RESIDENTIAL USE OF THE MORE OR LESS ONE HUNDRED THOUSAND FOUR HUNDRED NINETY-FOUR (100,494) SQUARE METERS LOT UNDER OCT NO. P-11854, P-11855, and P-1856 REGISTERED IN THE NAME OF SUZETTE K. APUYA, RONNIE O. KHO, AND CINDY K. ILAGAN, RESPECTIVELY LOCATED IN BARANGAY BIBIRAO, DAET, CAMARINES NORTE AND FAVORABLY ENDORSING THE SAME TO THE DEPARTMENT OF HUMAN SETTLEMENT AND URBAN DEVELOPMENT (DHSUD), REGIONAL OFFICE NO. 5 THE RESIDENTIAL SUBDIVISION PROJECT TO BE KNOWN AS WESTVILLE SUBDIVISION OF TIERRA ORIENTE DEVELOPMENT CORPORATION

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. AUTHORITY. It is hereby authorized to reclassify the more or less ONE HUNDRED THOUSAND FOUR HUNDRED NINETY-FOUR (100,494) SQUARE METERS LOT UNDER OCT NO. P-11854, P-11855, and P-1856 FROM AGRICULTURAL TO RESIDENTIAL USE.



SECTION 2. PURPOSE. The subject land shall be used for residential subdivision purposes subject to compliance with the standards set by Department of Human Settlement and Urban Development (DHSUD) and other existing laws.

SECTION 3. REPEALING CLAUSE. All ordinances or any part thereof which are inconsistent with any provision or provisions of this ordinance are hereby repealed or modified accordingly.

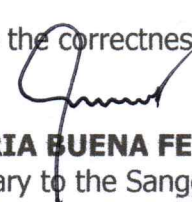
SECTION 4. EFFECTIVITY. This ordinance shall take effect upon its approval and compliance to rules of posting and publication.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof, all others concerned for their information and appropriate action.

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing.


MARIA BUENA FE Z. LUARES
Secretary to the Sangguniang Bayan


COUN. ROSSANO C. VALENCIA
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: **NOV 15 2021**